

any university in the territory of India. One-twelfth shall be elected by electorates consisting of persons who have been for at least three years engaged in teaching in such educational institution within the state. One-third shall be elected by the member of legislative assembly of the state, the remainder shall be nominated by the Governor in accordance with the provisions prescribed in the constitution.

The High Court

1. The authority to determine the number of Judges in a High Court rests with which of the following entities?

- (a) The President
- (b) The Chief Minister of the State
- (c) The Prime Minister
- (d) The Parliament

69th B.P.S.C. (Pre) 2023

Ans. (a)

The number of judges in a high court in India may be decided by the President of the country. According to Article 216 of the Indian Constitution, each High Court will have a Chief Justice and as many other judges as the President may decide to appoint on a case-by-case basis. Significantly, Article 216 states that every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint: Provided that the Judges so appointed shall at no time exceed in number such maximum number as the President may, from time to time, by order fix in relation to that Court.

2. Which High Court stated that the divorce, by saying 'Talaq' 3 times, is illegal?

- (a) Calcutta HC
- (b) Allahabad HC
- (c) Bombay HC
- (d) Punjab HC

39th B.P.S.C. (Pre) 1994

Ans. (b)

Allahabad High Court decided in the case of Rahmatullah Vs State of UP 1994 that the divorce by saying Talaq for 3 times is illegal. It violates articles 14 and 15. It is noteworthy that under 'The Muslim Women (Protection of Rights on Marriage) Act, 2019, any pronouncement of talaq by a Muslim husband upon his wife, by words either spoken or written or in electronic form or in any other manner whatsoever, shall be void and illegal.

3. Which of the following High Courts has its jurisdiction over more than one state or Union Territory?

- (a) Allahabad
- (b) Delhi

(c) Gujarat

(d) Bombay

38th B.P.S.C. (Pre) 1992

Ans. (d)

Bombay High Court has its Jurisdiction over more than one State or Union Territories. It has Jurisdiction over the States of Maharashtra, Goa, Union Territory of Dadra and Nagar Haveli and Daman and Diu.

4. What is the nature of the dispute of Babri Mosque/Ramjanmabhoomi Case before Allahabad High Court?

- (a) Writ petition
- (b) Title suit
- (c) Claim for compensation
- (d) Judicial review petition

45th B.P.S.C. (Pre) 2001

Ans. (b)

The dispute of Babri Mosque/Ramjanmabhoomi is presented before Allahabad High Court as a case of Title Suit, in which two separate communities have claimed for the same land and property.

5. A High Court Judge addresses his letter of resignation to—

- (a) The President
- (b) The Chief Justice of India
- (c) The Chief Justice of his High Court
- (d) The Governor of the State

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (a)

According to Article 217(1)(a), a Judge of High Court may, by writing under his hand addressed to the President, resign his office.

6. The mobile court in India is the brain child of —

- (a) Justice Bhagwati
- (b) Mr. Rajeev Gandhi
- (c) Dr. A.P.J. Abdul Kalam
- (d) Mrs. Pratibha Patil

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (c)

Former President of India Dr. A.P.J. Abdul Kalam first imagined about mobile Courts. The first mobile Court of India was established in August 2007 in Mewat district of Haryana. It was inaugurated by the then Chief Justice K.G. Balakrishnan. The concept of the mobile Court is based on the pressing need to take the administration of civil and criminal justice closer to the people so that those living in remote areas could benefit without incurring the expenses of travelling to Courts at distant places.